

23STCV04115 23STCV04115

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-31

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Case Number: 23STCV04115 Hearing Date: August 31, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: August

31, 2026 TRIAL

DATE: March 2, 2027

CASE: Evangeline Johnson, et al. v. County of

Los Angeles

CASE

NO.: 23STCV04115

MOTION TO

ENFORCE SUBPOENA

MOVING PARTY/PARTIES: Defendant County of Los Angeles

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Yes

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Served electronically on May 7, 2026

for a hearing date of August 31, 2026.

CASE HISTORY:

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February 24, 2023: Complaint filed.

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May 5, 2026: Defendant's motion for

summary judgment denied.

STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS:

Plaintiffs

Evangeline Johnson, Winford Carter II, and Love Carter ("Plaintiffs") sued

Defendant County of Los Angeles ("Defendant") based on the death of Decedent

Winford Joseph Carter ("Decedent").

Plaintiffs allege that Decedent died while Defendant was in custody at

Defendant's Twin Towers jail facility. Defendant

moves to enforce a subpoena for the production of business records that

Defendant served on Deponent T-Mobile USA, Inc. ("Deponent"). The subpoena seeks Decedent's cell phone records.

TENTATIVE RULING:

Defendant's

motion to enforce the subpoena is GRANTED.

Moving

party to give notice.

DISCUSSION:

Motion to enforce subpoena

Code of Civil Procedure section 1987.1 provides, "If a

subpoena requires the attendance of a witness or the production of books,

documents, electronically stored information, or other things before a court,

or at the trial of an issue therein, or at the taking of a deposition, the

court, upon motion reasonably made by [a party or a witness] . . . may make an

order . . . directing compliance with it upon those terms or conditions as the

court shall declare, including protective orders." (Code Civ. Proc., § 1987.1.)

Defendant

personally served the subpoena on Deponent on February 10, 2026 via Deponent's

agent for service of process. (Declaration

of Patrick J, Estabrook, Exhibit 2.) Defendant

did not personally serve the motion on Deponent. (See Cal. Rules of Court, rule

3.1346.) However, Deponent's counsel

conferred with Defendant regarding the subpoena via email, and indicated that

Defendant would not oppose a motion to compel Deponent to comply with the

subpoena. Accordingly, the Court

concludes Deponent waived personal service of the motion. Neither Plaintiffs nor Deponent objected to

the subpoena. Instead, Deponent

represented to Defendant that Deponent would not comply with the subpoena

absent a court order requiring Deponent to do so. (Declaration of Patrick J, Estabrook, Exhibit

3.) Deponent's refusal to comply with

the subpoena absent a court order does not justify Deponent's failure to comply

with the subpoena. Deponent fails to

identify any legally cognizable basis to excuse its compliance with the

subpoena.

Accordingly,

Defendant's motion to enforce the subpoena is GRANTED.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: August 31, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.